

FACULTY OF LAW, BHABHA UNIVERSITY, BHOPAL

Jatkhedi, NH-12, Hoshangabad Road, Bhopal-462026

EXAMINATION SCHEME

B.A. L L.B., Semester - VI

S. No.	Subject Code	Name of Subject	Marks Allotted						Total Marks	Credit/Contact Hours Per Week			Total Credit
			Theory		Internal Assignment		Practical / Viva-Voice			L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks					
01.	BAL-601	Political Science -VI (Major)	80	32	20	8	0	0	100	5	1	0	6
02.	BAL-602	Language -III (Optional)*	80	32	20	8	0	0	100	5	1	0	6
03.	BAL-603 (C)	Intellectual Property Law	80	32	20	8	0	0	100	5	1	0	6
04.	BAL-604 (C)	Gender Justice & Feminist Jurisprudence	80	32	20	8	0	0	100	5	1	0	6
05.	BAL-605 (A)	Law of Crimes - II (Bhartiya Nagrik Suraksha Sanhita - 2023)	80	32	20	8	0	0	100	5	1	0	6
06.	BAL-606 (C)	Interpretation of statute And Principaes of LegislationS	80	32	20	8	0	0	100	5	1	0	6
Total			480	192	120	48	0	0	600	30	6	0	36

L : Lacture

T : Tutorial

P : Practical

*Language -III (Optional) :-

i. Optional -A (French -III)

ii. Optional -B (Hindi -III)

REGISTRAR
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B.A. L.L.B. (HONS.) PART-III SEMESTER - VI PAPER – I POLITICAL SCIENCE-VI (MAJOR)

UNIT - I Policy and Principles

1. Indian foreign policy
2. Basic principles
3. Internal and External determinants
4. Practice and policy of non-alignment
5. Indian nuclear policy.

UNIT - II International relations after 1945

1. Nature and development
2. International relations after 1945 (II world war, Cold war-post cold war)
3. Non-Alignment Movement (NAM)
4. World power.
5. North-South & South-South dialogue.

UNIT - III United Nations and N.P.T., C.T.B.T.

1. United Nations-organisation, working.
2. Disarmament N.P.T., C.T.B.T.
3. International Financial organisations.

UNIT - IV Relations with Other Countries

1. Indian relations with-U.S.A., China, Russia, Pakistan, Srilanka, Bangladesh, Nepal and Afghanistan.

UNIT - V United Nations, SAARC, India and ASEAN.

1. India and United Nations
2. SAARC, India and ASEAN.
3. India and European Common market.
4. Terrorism, India and contemporary international problems.

SELECTED BIBLIOGRAPHY:-

1. Encyclopedia of International Terrorism – Verinder Grover Deep and Deep Publication
2. Urmila Sharma & S.K. Sharma – International Relation Theory and History Atlantic Publication – New Delhi.
3. K.L. Bhatia – Federalism and Friction in centre state relation Deep and Deep Publication
4. Surya P. Subedi – Dynamics of foreign policy and law, Oxford
5. B.S. Murthy – International Relations and organisation Eastern Book Company
6. R. Sharma – India and SAARC - Deep and Deep Publication

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B.A. LL.B. (HONS.) PART-III SEMESTER - VI PAPER – II (OPTIONAL-A) LANGUAGE – III (FRENCH – III)

UNIT - I

1. Lesson Reading
2. Answering Questions
3. Dialogue Writing
4. Adverb of Quantity.
5. Near Future tense

UNIT - II

1. Article Writing
2. Invitation Writing
3. Name of Sports in French
4. Expressions of time
5. Near past tense

UNIT - III

1. Weather forecast
2. Place of preposition
3. Negative expressions
4. History of France
5. Famous things of France.

UNIT - IV

1. Name of furniture and gadgets in French
2. Family members
3. Conversation
4. Specialised shops
5. Objects in classroom

UNIT - V

1. All tenses
2. Conjugations
3. Essays
4. Passage Writing

SELECT BIBLIOGRAPHY:-

1. Le Nouveau Sans Frontiers III

B.A. LL.B. (HONS.) PART-III SEMESTER - VI
PAPER – II (OPTIONAL-B) LANGUAGE – III (HINDI – III)

UNIT – I प्रशासनिक शब्दावली राज्यों और केन्द्र में हिन्दी की स्थिति

1. प्रशासनिक शब्दावली
2. प्रमुख लेटिन सूत्रों को हिन्दी में अभिव्यक्त करना
3. राज्य में हिन्दी की स्थिति
4. केन्द्र में हिन्दी की स्थिति

UNIT – II दीवानी एवं व्यवहार विधि में प्रयुक्त होने वाले शब्द (Terms/Word)

1. संविदा, प्रसंविदा, अभिसमय, प्रस्थपना, प्रस्ताव के लिए आमंत्रण, सहमति, स्वीकृति
2. प्रड-न्याय, केविट, याचिकाएं, निष्पादन, उपचार, परितोष, मुजरई (Set off)
3. आज्ञाप्तियों, अनुज्ञाप्तियों, प्रतिकर, पट्टे, वसीयत (इच्छा पत्र)
4. संज्ञेय, असंज्ञेय, शमनीय, अशमनीय
5. पुनरीक्षण, पुनरावलोकन/पुनर्विलोकन, अपील

UNIT – III निर्णय लेखन के सिद्धान्त विशेषताएँ, एवं विषय सामग्री (Contents)

1. निर्णय एवं विनिश्चय (Decision & Judgement)
2. निर्णय लेखन के सिद्धान्त
3. निर्णय लेखन की विशेषताएँ
4. विषय सामग्री – व्यवहारिक विधि एवं अपराधिक विधि

UNIT – IV विधियों का वर्गीकरण

1. व्यवहार विधि एवं अपराध विधि
2. संवैधानिक विधि, अपकृत्यविधि
3. सारवान एवं प्रक्रियात्मक विधि
4. संविधि एवं अधिनियम, अनुसूची, अध्यादेश

UNIT – V संक्षिप्त शोध लेखन (Articles)

1. निबंध एवं शोध निबंध का अर्थ एवं परिभाषा
2. विषय से संबंधित सहायक सामग्री
3. लेखन के लिए सिद्धान्त

SELECT BIBLIOGRAPHY:-

1. हिन्दी शब्द शक्ति और पारिभाषिक शब्दावली – बालेन्दु शेखर तिवारी
2. प्रयोजनमूलक हिन्दी – माधव सोनटक्के
3. राष्ट्रभाषा हिन्दी समस्याएँ एवं समाधान – देवेन्द्रनाथ शर्मा
4. भाषा प्रौद्योगिकी एवं भाषा प्रबंधन – डॉ. सूर्यप्रसाद दीक्षित
5. हिन्दी राष्ट्रभाषा जनभाषा राजभाषा – शंकर दयाल सिंह

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B.A. L.L.B. (HONS.) PART-III SEMESTER - VI
PAPER – III INTELLECTUAL PROPERTY LAW

UNIT-I Introduction

1. The meaning of intellectual property
2. Forms of intellectual property: copyright, trademarks, patents and designs
3. New forms as plant varieties and geographical indications
4. Introduction to the leading international instruments concerning intellectual property rights: the Berne Convention, Universal Copyright, Convention, the Paris Convention, Trips, the World Intellectual Property Rights Organization (WIPO) and the UNESCO

UNIT-II Selected aspects of the Law of copyright in India

1. Historical evolution of the copyright law
2. Meaning of copyright
3. Copyright in literacy, dramatic and musical works
4. Copyright in sound records and cinematograph films
5. Ownership of copyright
6. Assignment and licence
7. Copyright authorities
8. Infringement of Copy right and remedies including Anton Pillor injunctive relief in India

UNIT-III Trademarks

1. The rationale of protection of trademarks as an aspect of commercial and of consumer rights
2. Definition and concept of trademarks
3. Registration of trademark- authorities under the trademark Act
4. Passing off and infringement
5. Remedies

UNIT-IV Patents

1. Concepts and Historical view of the patents
2. Process of obtaining a patent, authorities
3. Procedure for filling patents: patent co-operation treaty
4. Prior publication or anticipation
5. Rights and obligations of a patentee
6. Compulsory licences
7. Infringement - defences
8. Injunctions and related remedies

UNIT-V

1. Geographical indication Act
2. New plant culture and breeds Act.

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SELECTED BIBLIOGRAPHY:-

1. Cornish W.R. Intellectual Property, Patents, Trade Marks, Copy Right and Allied Right (1999), Asia Law House, Hyderabad.
2. Vikas Vashishth, Law and practice of Intellectual Property 1999 Bharat Law House Delhi.
3. P. Narayanan, Intellectual Property Law (1999), (ed) Eastern Law House, Calcutta
4. Bibeck Debroy (ed). Intellectual Property Right (1998), Rajiv Gandhi Foundation, Delhi
5. U.I.F. Anderfelt, International Patent Legislation and Developing Countries (1971)
6. W.R. Cornish, Intellectual Property (3rd ed) (1996) Sweet and Maxwell
7. K. Thairani, copyright: The Indian Experience (1987)
8. W.R. Cornish, Para and Materials on Intellectual Property (1999) Sweet and Maxwell.

B.A. L.L.B. (HONS.) PART-III SEMESTER - VI
PAPER – IV GENDER JUSTICE & FEMINIST JURISPRUDENCE

UNIT-I Women in Pre-Independence India

1. Social and legal inequality
4. Social reform movement in India
5. Gandhian movement.
6. Nehru's views – joint family etc.
7. Karachi congress – Fundamental Rights Resolution.
8. Equality of sexes.

UNIT-II Women in Post-Independence India

1. Preamble of the Constitution – Equality provisions in fundamental Rights and Directive Principles of State Policy.
2. Negative Aspects of the Constitution – Exploitation of sex not mentioned in Article 23.
3. Different personal laws – unequal position of women.
4. Uniform Civil Code towards gender justice.
5. Indian tradition and family ideology: growth of feminism and schools of feminism.

UNIT-III Sex Inequality in Inheritance Rights

1. Continuance of feudal Institutions of joint family – women's inheritance position under Hindu Law.
2. Inheritance right of women under Christian law.
3. Inheritance right of women under Parsi law.
4. Inheritance right of women under Muslim law.
5. Movement towards uniform Civil Code.

Unit-IV Matrimonial relations and its consequences

1. Matrimonial Property.
2. Separation of property.
3. Maintenance of different system of personal law.
4. Division of assets on divorce.

UNIT-V Social Welfare Laws for Women and Non-implementation of protective labour legislation.

1. Maternity benefits Act.
2. Equal remuneration Act.
3. Factories Act.
4. Inequality in the work place.
5. Additional burden of domestic responsibilities.

SELECTED BIBLIOGRAPHY -

1. Flevia Agn's et. al. Women and the Law
2. Meynei Hindu Woman & Marriage

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B.A. LL.B. (Hons.) PART - III SEMESTER - VI

PAPER - V LAW OF CRIMES -II (B.N.N.S.)

Bhartiya Nagarik Suraksha Sanhita 2023

Unit - I

Basic Concepts of Criminal Procedure Laws and Constitution of Criminal Courts (Section 1-33)

9. Introduction to Criminal Procedure
 - a. Definition and scope
 - b. Historical development and significance of criminal procedure law
10. General Principles of Criminal Procedure
 - a. Due process of law
 - b. Rights of the accused
 - c. Principles of natural justice
11. Hierarchy of Criminal Courts
 - a. Structure and organisation of criminal courts
 - b. Jurisdiction and powers of various courts
12. Role of Police and Prosecution
 - a. Powers and functions of police in criminal investigation
 - b. Role and responsibilities of public prosecutors
13. Fundamental Rights and constitutional provisions related to Criminal Proceedings
 - a. Right to fair trial
 - b. Right to legal representation
 - c. Right against self-incrimination
14. Preliminary
15. Constitution of Criminal Courts and Offices
16. Power of Courts

Unit - II

Offices and Pre-Trial Procedures (Sections 34-288)

6. Arrest of Persons
7. Processes to Compel Appearance
8. Process to Compel Production of Things
9. Reciprocal Arrangements for Assistance
10. Information to the Police and Their Powers to Investigate

Unit -III

Trial Procedures (Sections 197-338)

10. Jurisdiction of the Criminal Courts in Inquiries and Trials
11. Conditions Requisite for Initiation of Proceedings
12. Complaints to Magistrates
13. Commencement of Proceedings Before Magistrates
14. The Charge
15. Trial Before a Court of Session
16. Trial of Warrant-Cases by Magistrates
17. Trial of Summons-Cases by Magistrates
18. Summary Trials

Unit - IV

Post-Trial Procedures and other general provisions (Sections 289-406)

7. Plea Bargaining
8. Attendance of Persons Confined or Detained in Prisons
9. Evidence in Inquiries and Trials
10. General Provisions as to Inquiries and Trials
11. Accused persons with mental illness
12. Provisions as to offences affecting the administration of justice

Unit - V

Sentencing, Appeals, and Miscellaneous Provisions (Sections 407-533)

11. Submission of Death Sentences for Confirmation
12. Appeals
13. Reference and Revision
14. Transfer of Criminal Cases
15. Execution, Suspension, Remission, and Commutation of Sentences
16. Provisions as to Bail and Bonds
17. Disposal of Property
18. Irregular Proceedings
19. Limitation for Taking Cognizance of Certain Offences
20. Miscellaneous Provisions.

Suggested Readings

6. J K Verma, Bharatiya Nagarik Suraksha Sanhita, 2023 (Criminal Procedure) : A Commentary (Eastern Book Company) (2024).
7. S K Misra & Nandini Agarwal, Law of Criminal Procedure in India (Allahabad Law Agency) (2024).
8. K.N.Chandrsekharan Pillai (Rev.), R. V. Kelkar's Criminal Procedure (2021).
9. Ratanlal And Dhirajlal, The Code Of Criminal Procedure - As Amended By The Criminal Law (Amendment) Act, 2013 (LexisNexis)(2017).
10. N.K. Acharya, Guide to Criminal Law and Procedure (Asia Law House)(2022)

B.A. LL.B. (HONS.) PART-III SEMESTER - VI
PAPER – VI INTERPRETATION OF STATUTES AND
PRINCIPLES OF LEGISLATION

UNIT-I Interpretation of Statutes

1. Meaning of the term statute, Kinds of statutes
2. Commencement, operation, repeal of statutes
3. Purpose of interpretation of statutes
4. Meaning of construction and interpretation – their difference

UNIT-II Aids to Interpretation Internal aids

1. Titles, 2. Preamble, 3. Heading and marginal notes, 4. Sections and sub-sections
5. Punctuation marks, 6. Illustrative exceptions, provisos and saving clauses
7. Schedules, 8. Non - obstante clause

External aids

1. Dictionaries, 2. Translations, 3. Travaux preparatoires, 4. statutes in pari materia
5. Contemporanea Exposition,
6. Debates, inquiry commission reports and Law commission reports
7. General Clauses Act

UNIT-III Principles and Rules of Statutory Interpretation

1. Primary rules, 2. Literal rule, 3. Golden rule,
4. Mischief rule (rule in the Heydon's case)
5. Rule of harmonious construction, 6. Noscitur a sociis, 7. Ejusdem generis
8. Reddendo singula singulis

UNIT-IV Interpretation with reference to the subject matter and purpose

1. Restrictive and beneficial construction, 2. Taxing statutes, 3. Penal statutes
4. Welfare legislation and principles of legislation, 5. Presumption

UNIT-V Principle of Constitutional Interpretation

1. Harmonious constructions, 2. Doctrine of pith and substance,
3. Colourable legislation, 4. Ancillary powers, 5. "Occupied field"
6. Residuary power, 7. Doctrine of repugnancy

SELECT BIBLIOGRAPHY

1. G.P. Singh, Principle of Statutory Interpretation, (7th ed.), 1999 Wadhwa Nagpur.
2. P.S. Langan (ed.), Maxwell on The interpretation of Statutes (1976, N.M. Tripathi, Bombay
3. K. Shanmukham, N.S. Bindras' Interpretation of Statutes (1997) The Law Book Co. Allahabad.
4. V. Sarathi, Interpretation of Statutes (1984), Eastern & Co.
5. M.P. Jain, Constitutional Law of India, (1994) Wadhwa & Co.
6. M.P. Singh, (ed.) V.N. Shukla's Constitution of India (1994) Eastern Lucknow
7. U. Baxi, Introduction to Justice K.K. Mathews, Democracy Equality and Freedom (19780 Eastern Lucknow.
8. Theories of Legislation by Jeremy Bentham, Tripathi Publication.